
BEFORE THE IOWA BOARD OF BEHAVIORAL SCIENCE

Re:	)	CASE NO. 15-0221
Mental Health Counselor License of	)	
	)	SETTLEMENT AGREEMENT
RACHEL SHUM MCALPIN	)	AND FINAL ORDER
License No. 001581	)	
Respondent.	)	

Pursuant to Iowa Code sections 17A.12(5) and 272C.3(4) (2015), and 645 IAC 12, the Iowa Board of Behavioral Science ("Board") and Rachel Shum McAlpin ("Respondent") enter into the following Settlement Agreement and Final Order ("Order") to settle a contested case currently pending before the Board.

The allegations contained in the Statement of Charges against Respondent shall be resolved without proceeding to hearing, as the Board and Respondent stipulate as follows:

1. The Board filed a Notice of Hearing and Statement of Charges on June 17, 2016.
2. The Board has jurisdiction over the parties and the subject matter of these proceedings.
3. Respondent neither admits nor denies the allegations in the Statement of Charges and acknowledges that the allegations, if proven in a contested case proceeding, would constitute grounds for the discipline agreed to in this Order.
4. Execution of this Order constitutes the resolution of a contested case. Respondent has a right to hearing before the Board on the charges, but Respondent waives the right to hearing and all attendant rights, including the right to appeal or seek judicial review of the Board's actions, by freely and voluntarily entering into this Order. Once entered, this Order shall have the force and effect of a disciplinary order entered following a contested case hearing.
5. Respondent acknowledges that she has the right to be represented by counsel on this matter.
6. Respondent agrees that the State's counsel may present this Order to the Board and may have *ex parte* communications with the Board while presenting it.
7. This Order is subject to approval by a majority of the full Board. If the Board does not approve this Order, it shall be of no force or effect to either party, and shall not be admissible for any purpose in further proceedings in this matter. If the Board approves this Order, it shall be the full and final resolution of this matter.
8. This Order shall be part of Respondent's permanent record and shall be considered by the Board in determining the nature and severity of any disciplinary action to be imposed in the event of any future violations.
9. This Order shall not be binding as to any new complaints received by the Board.

10. Respondent understands the Board is required by federal law to report any adverse action to the National Practitioner Data Bank.

11. This Order, when fully executed, is a public record and is available for inspection and copying in accordance with the requirements of Iowa Code chapters 22 and 272C.

12. The Board's approval of this Order shall constitute a FINAL ORDER of the Board.

IT IS THEREFORE ORDERED:

13. Respondent's license shall be placed on **PROBATION** for a minimum period of two (2) years, subject to the following terms and conditions:

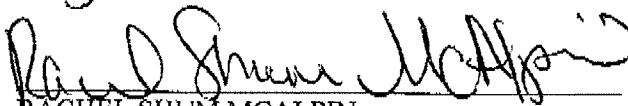
- a. Respondent shall provide written notice to the Board of her intent to resume practice as a mental health counselor prior to beginning employment as a mental health counselor.
- b. Respondent shall complete two (2) years of monitored practice before being released from probation. Prior to beginning practice monitoring, Respondent shall submit a proposed practice monitor, who must be an Iowa licensed mental health counselor, and a practice monitoring plan to the Board for approval within thirty (30) days of beginning employment as a mental health counselor. Practice monitoring shall commence upon Board approval of the monitor and the plan. Respondent shall provide the practice monitor with a copy of this Order and the Nebraska disciplinary documents referenced in the Notice of Hearing and Statement of Charges. Respondent's practice monitor shall perform an initial review of Respondent's practice with the goal of identifying potential areas for improvement. After the initial review meeting, Respondent shall meet in a face-to-face setting with the practice monitor on a monthly basis during the probation period to review at least 20% of Respondent's clinical records. A minimum of twelve meetings per year, in addition to the initial review meeting, is required. Respondent's practice monitor shall submit quarterly reports to the Board describing the clinical records reviewed, dates of meetings held with Respondent, a summary of the discussion held at each meeting, the practice monitor's recommendations for further mentoring and monitoring, if any, and any other information the practice monitor deems relevant for the Board's review. Said quarterly reports are due on January 5, April 5, July 5, and October 5 of each calendar year during the probationary period. Respondent is responsible for all costs associated with practice monitoring and for ensuring the quarterly reports are timely submitted by her practice monitor.
- c. Respondent shall have a designated worksite monitor who shall work with Respondent on a nearly daily basis. The name of the worksite monitor shall be submitted to the Board within thirty (30) days of beginning employment. The worksite monitor may be the same individual as the practice monitor. The worksite monitor shall submit quarterly reports to the Board describing

Respondent's attendance and behavior at work, including any areas of concern. Said quarterly reports are due on January 5, April 5, July 5, and October 5 of each calendar year during the probationary period. Respondent is responsible for all costs associated with worksite monitoring and for ensuring the quarterly reports are timely submitted by her worksite monitor.

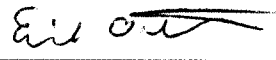
- d. Respondent shall appear before the Board upon request for the purpose of reviewing her performance during Respondent's probationary period. Respondent shall be given reasonable notice of the date, time, and place for such appearances.
- e. Respondent shall obey all federal and state statutes and regulations governing the practice of mental health counseling.
- f. Respondent shall provide written notification to the Board of any change of home address, telephone number, or place of employment within ten (10) days of such a change.
- g. The notifications and reports required to be submitted to the Board pursuant to this paragraph should be mailed to the Iowa Board of Behavioral Science, Attn: Judy Manning, Bureau of Professional Licensure, Iowa Department of Public Health, Lucas State Office Building—5th Floor, 321 East 12th St., Des Moines, IA 50319, or emailed to Judith.Manning@idph.iowa.gov.

14. Should Respondent violate the terms of this Order, the Board may initiate action to impose other licensee discipline as authorized by Iowa Code chapters 147, 154D, and 272C and 645 IAC 13 and 33.

This Settlement Agreement and Final Order is voluntarily submitted by Respondent to the Board for its consideration on the 29 day of July, 2016.


RACHEL SHUM MCALPIN
Respondent

This Settlement Agreement and Final Order is approved by the Iowa Board of Behavioral Science on the 9th day of August, 2016.


Chairperson
Iowa Board of Behavioral Science